

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 15, 2026
8:30 a.m.

7. SAVANNA ARNETT V. GAVIN NISHIHIRA

25FL1181

This matter is before the court for hearing on two separate Requests for Order (RFO), one filed by the Respondent on January 29, 2026, and the other filed by the Petitioner on February 05, 2026.

A hearing was originally set for February 25, 2026. On that date, the court referred the parties to a CCRC session set for March 05, 2026,⁴ and continued the hearing to April 15, 2026. Pending the April 15 hearing, the following orders remain in full force and effect: (1) the Temporary Emergency Orders issued by this court on January 29, 2026 (Respondent's RFO); (2) the Temporary Emergency Orders issued by this court on February 05, 2026 (Petitioner's RFO); and (3) the orders issued on December 02, 2025, by the Superior Court of California, in and for Nevada County, except as modified by the two Emergency orders entered by this court.

The court is in receipt of a CCRC report dated March 12, 2026, a copy of which was emailed to both Respondent and Petitioner's attorney that same day per the Clerk's Certificate of Mailing, also filed March 12, 2026.

The court notes that neither party submitted any supplemental declaration concerning the CCRC report.

The court finds that the agreements and recommendations contained in the CCRC report are in the best interests of the parties' children and so adopts them as the orders of the court with the following exceptions:

1. The CCRC report recommends that the children shall not be removed from El Dorado County. However, this is problematic because the Petitioner currently lives in Sacramento County. Therefore, the court modifies this recommendation in the CCRC report to state the children shall not be removed from El Dorado County or Sacramento County without written permission of the other parent or court order.
2. Although not expressly identified in the "Recommendations" section of the CCRC report, the body of the CCRC report recommends that the court appoint minor's counsel for each of the parties' two minor children. However, the court declines to do so for two reasons. First, the parenting classes and co-parenting counseling that the parties have agreed to participate in should alleviate the need for minor's counsel. Additionally, appointing minor's counsel would put additional financial stress on the parties, who are already struggling to meet their financial needs and the needs of the children.

⁴ The CCRC session was later re-scheduled to March 10, 2026.

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TENTATIVE RULING #7: WITH THE EXCEPTION OF THE MODIFICATIONS OUTLINED HEREIN, THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT DATED MARCH 12, 2026, TO BE IN THE BEST INTERESTS OF THE PARTIES' CHILDREN AND SO ADOPTS THEM AS THE ORDERS OF THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.